

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01822

LAM v. KING, et al.

**PLAINTIFF’S MOTION FOR RECONSIDERATION AND MOTION FOR
LEAVE TO FILE CROSS-COMPLAINT**

Plaintiff’s motions are denied with prejudice. Defendants are directed to submit a form of judgment.

I. BACKGROUND

Self-represented plaintiff Le V. Lam’s first amended petition sought to establish an easement by necessity and right of way to a dirt road adjacent to his vacant land in Boulder Creek, CA. The same parcels at issue in this case were at issue in the *Estate of Andrew John Farkas*, Santa Cruz Superior Court no. PR046216 (“*Farkas* case”). When plaintiff purchased the parcels in January 2025 from the administrator of the Farkas Estate (McLaughlin), he believed he would have access through an existing dirt road (“Tradewinds Drive”) that crosses two other parcels. However, the owners of those other parcels (defendants Kendal King and Jeremy and Kelly Dybdahl) denied him access to use that road over their property, pursuant to the 2019 judgment in the *Farkas* case. Without the ability to access the dirt road, plaintiff is landlocked. His action sought to reinstate the purported easement.

Defendant Kendall King filed a general demurrer to and motion to strike the amended petition based on res judicata and collateral estoppel. The Court sustained the demurrer without leave to amend, granted the motion to strike, and permitted co-defendants Jeremy Dybdahl and Kelly Dybdahl to join those motions. Following that ruling, a notice of entry of order was filed on April 23, 2026 in favor of all defendants (Kendall King, Jeremy Dybdahl and Kelly Dybdahl).

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

Plaintiff now files two motions – for reconsideration pursuant to Code of Civil Procedure section 1008, and for leave to file a cross-complaint against defendant King for fraud.

Although petitioner is self-represented, such a party is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944.)

A. Motion for reconsideration

A motion for reconsideration must be “based upon new or different facts, circumstances, or law.” (Code Civ. Proc., § 1008, subd. (a).)¹ The moving party “shall state by affidavit... what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*) The moving party must also show diligence and explain why he or she could not have presented the new or different facts or law earlier. (*California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 46; *Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1200.)

Plaintiff’s motion presents no new facts, circumstances, or law, or any affidavit of such. Plaintiff’s purported new fact is the failure of a previous owner (Maleti) to include an easement over King’s property in the grant deed to Farkas. But this is not new; he presented this argument in the underlying proceeding. To the extent plaintiff failed to argue previously that Maleti breached his duty to Farkas, plaintiff fails to explain why he did not or could not have presented that argument. Plaintiff further fails to refute the evidence of res judicata and collateral estoppel that apply in this case and bars plaintiff’s first amended petition, as described in the Court’s April 23, 2026, order after hearing.

B. Motion for leave to file cross-complaint

The Court has discretion to permit filing of the proposed cross-complaint since it is permissive, not compulsory. But based on the underlying findings of res judicata and collateral estoppel, the Court will not permit any cross-complaint to be filed.

Plaintiff relies on section 426.50, compulsory cross-complaints, as the basis for his motion. Compulsory cross-complaints are those which contain a related cause of action to the allegations in the complaint. (§ 426.30.) A related cause of action is one which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which is alleged in the complaint. (§ 426.10; *Crocker National Bank v. Emerald* (1990) 221 Cal.App.3d 852, 863.)

In this case, the King cross-complaint is the operative complaint. The transaction which is at issue in the King cross-complaint is the transfer of the Lam Property from McLaughlin to

¹ All future statutory references are to the Code of Civil Procedure, unless otherwise stated.

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

Lam in 2025. Since King was not involved in that 2025 transaction (which is the subject of the King cross-complaint), Lam's proposed cross-complaint is based on a transaction or occurrence which is unrelated to the 2025 transaction. Therefore, the proposed cross-complaint is not compulsory and is instead permissive. (§ 428.50.) Permission to file a permissive cross-complaint is solely within the trial court's discretion. (*Crocker National Bank v. Emerald, supra*, 221 Cal.App.3d at p. 864.)

Plaintiff asserts that the Lam Property has an easement over the King Property because Lam's predecessors in interest acquired such easement and that such easement passed down through the chain of title to him. He therefore alleges that King has committed fraud against him by stating that there is no easement for the benefit of the Lam Property over the King Property. This is insufficient to support any claim for fraud since he has failed to plead any scienter by King; plaintiff acknowledges that he and King had no contact until he sued King in this action. Further, to the extent plaintiff seeks to base his fraud claims on statements made by King in the *Farkas* case or in King's cross-complaint, he is precluded from doing so pursuant to the litigation privilege. (Civil Code § 47, subd. (b).)

No. 26CV00542

TURNER v. GOLDEN STATE ORTHOPEDICS, et al.

DEFENDANTS CHRISTIAN S. HEYWOOD, M.D., GOLDEN STATE ORTHOPEDICS & SPINE, AND ORTHONORCAL INC.'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT

The demurrer is sustained with leave to amend. Plaintiff may file a second amended complaint, no later than August 21, 2026, that fully complies with Code of Civil Procedure section 425.10, subdivision (a)(1), and related Rules of Court. Based on this ruling, the motion to strike is denied as moot.

Plaintiff David Turner filed his 68-page first amended complaint for medical malpractice on April 17, 2026. While it is nearly impossible to deduce what the basis of his suit is, it appears that Dr. Heywood treated plaintiff's shoulder in 2024-2026 following a surgery by another doctor sometime in 2014 or 2016. Plaintiff also blames doctors at Doctors On Duty for failure to prescribe various modalities and treatment.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power*